

9. 9:00 AM CASE NUMBER: C24-02551
CASE NAME: ODK CAPITAL, LLC VS. THAI PHAM
*HEARING ON MOTION IN RE: RECONSIDERATION OF ORDER DENYING MOTION TO SET ASIDE
DEFAULT
FILED BY:
TENTATIVE RULING:

Appearance required.

10. 9:00 AM CASE NUMBER: C24-02592
CASE NAME: ROWENA DAVIS VS. THE STONEBROOK CONVALESCENT CENTER, INC
*HEARING ON MOTION IN RE: AN ORDER GRANTING HER AUTHORITY TO MAINTAIN THE
SURVIVAL CAUSES OF ACTION ON BEHALF OF ROWENA DAVIS, AN INTERESTED PERSON
FILED BY: WEST , NAMONDA
TENTATIVE RULING:

The motion is denied without prejudice for failure to file a proof of service.

11. 9:00 AM CASE NUMBER: C25-01068
CASE NAME: CHRISTOPHER LONDAHL VS. DOES 1-10
HEARING IN RE: APPLICATION AND HEARING FOR RIGHT OF ATTACH ORDER
FILED BY: CHRISTOPHER LONDAHL
TENTATIVE RULING:

The hearing is continued to December 22, 2025 at 9:00 a.m. in Department 9.

12. 9:00 AM CASE NUMBER: C25-01091
CASE NAME: TARA HOLMES LEONARD VS. DONOR NETWORK WEST
*HEARING ON MOTION IN RE: ERRATA AND RENEWED CONTRACT
FILED BY:
TENTATIVE RULING:

Defendant Donor Network West brings this motion to compel arbitration and to stay this action during the pendency of arbitration. The Motion is opposed by Plaintiff Tara Holmes Leonard.

The Motion was originally heard on September 15, 2025. The Court took the matter under submission and requested supplemental briefing. The parties each filed supplemental briefs. The Court has considered the parties' papers and for the reasons explained below, the Motion is **denied**.

Background

The Complaint alleges claims relating to work by Plaintiff from April 2019 through December 23, 2024. Plaintiff is suing for (1) wrongful termination in violation of public policy, (2) gender discrimination, (3) work environment harassment, (4) failure to prevent harassment, discrimination and retaliation, (5) retaliation (FEHA), (6) retaliation (Labor Code 1102.5), (7) failure to pay overtime wages, (8) failure to provide meal and rest periods, (9) waiting time penalties, (10) failure to provide accurate wage statements, (11) failure to provide vacation pay, (12) violation of unfair competition law, and (13) PAGA.

Defendant argues that there is valid arbitration agreement here and requests that this case be sent to arbitration. Defendant submits into evidence an agreement between the parties dated April 1, 2019, entitled Independent Consultant: Standard Form Contract [Agreement], which includes a provision to arbitrate "[a]ny disputes that arise between the parties with respect to the performance of this contract." (Dec. Dr. Janice Whaley, ¶ 12, Ex. D at § 8.) The agreement as well as the circumstances of Plaintiff's work for Defendant is discussed in the declaration of Dr. Whaley, Defendant's Chief Executive Officer.

Defendant contends that the arbitration agreement encompasses the claims at issue in this case. The Agreement includes a Scope of Services, which describes Plaintiff's scope of work as "observation, discussion and reporting on Family Resource Coordinators," (Agreement at ex. A.) On the day of the initial hearing, Defendant filed an errata that included a May 6, 2019 Agreement with the same arbitration language and a similar scope of service (although without a completion date). (Renewed Agreement.)

Without receiving permission from the Court, Defendant filed a third version of the parties' agreement, dated September 1, 2019. This agreement also contains the same arbitration language, but includes additional scope of work language according to Defendant. Defendant's attorney argues that they just learned of this agreement on November 4, 2025, and sent a copy to Plaintiff's attorney. The Court declines to consider the September 1, 2019, version of the contract. The contract upon which the Motion is based should have been included in the moving papers. While reply evidence is sometimes permissible in arbitration motions, it is usually limited to issues such as evidence on the execution of the agreement. (See, *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) Further, in this case the reply was filed on September 8, 2025, and this new document was not provided until approximately two months after the reply was filed. This third contract was filed late and the Court, exercising its discretion, will not consider the September 2019 version. (California Rules of Court, rule 3.1300(d).)

Standard

Where, as here, the parties to a lawsuit have executed an arbitration agreement, a "threshold

question[] presented by every motion or petition to compel arbitration” is “whether the parties’ dispute falls within the scope of that agreement.” (*Mondragon v. Sunrun Inc.* (2024) 101 Cal.App.5th 592, 601.) Under both California or federal law, “there is no policy compelling persons to accept arbitration of controversies which they have not agreed to arbitrate.” (*Id.*, at 602, internal quotes omitted.)

Only disputes that fall within the scope of an arbitration provision are arbitrable. (*Performance Team Freight Systems, Inc. v. Aleman* (2015) 241 Cal.App.4th 1233, 1244 [*Performance Team*]; *AT&T Technologies v. Communications Workers* (1986) 475 U.S. 643, 648.) “[A]rbitration is a matter of contract and a party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.” (*Ibid*; *Mondragon, supra*, 101 Cal.App.5th at 602.)

In *Performance Team*, the court discussed the application of the subject arbitration provision, which provided for arbitration of the interpretation and performance of the agreement. The court held that “an analysis of the individual respondents’ status as employees or independent contractors will require an interpretation of the agreements’ terms (among other evidence) to decide if the terms accurately reflect the parties’ working relationship. Thus, the parties’ dispute encompasses both the interpretation and performance of the subject agreements’ terms.” (*Performance Team, supra*, 241 Cal.App.4th at 1246.)

The court in *Performance Team*, evaluated a similar provision in *AT&T Technologies, supra*, that “required arbitration of “differences arising with respect to the interpretation of this contract or the performance of any obligation hereunder.” (*AT&T Tech, supra*, 475 U.S. 643, 644–645.) The high court deemed the arbitration provision ‘broad.’ (*Id.*, at p. 650.)” (*Performance Team, supra*, 241 Cal.App.4th at 1245.)

The ruling of *Performance Team* also discusses the provision in *Elijahjuan v. Superior Court* (2012) 210 Cal.App.4th 15 “the arbitration provision applied to disputes regarding the “application or interpretation” of the parties’ contracts,” which was narrowly interpreted by the court in that case, which held that “the ultimate conclusion of whether workers were employees or independent contractors ‘is extracontractual and involves neither the application nor the interpretation of the Agreements. It involves consideration of petitioners’ actual work.’” (*Id.*, at 1244-1245.) The court in *Elijahjuan* also noted that a more narrower arbitration clause did not include Labor Code violations, whereas a broad one encompassing any and all employment-related disputes would include Labor Code violations. (*Elijahjuan, supra*, 210 Cal.App.4th at 24.)

“In deciding whether the parties agreed to arbitrate their dispute, we apply state rules of contract interpretation to evaluate whether the parties objectively intended to submit the issue to arbitration.” (*Ramos v. Superior Court* (2018) 28 Cal.App.5th 1042, 1051.) In *Ramos*, the arbitration provision included “[a]ny dispute or controversy of a Partner or Partners arising under or related to this Agreement ... or the Partnership.” (*Id.*, at 1047.) “Clauses providing for arbitration of disputes “arising from” or “arising out of” an agreement have generally been interpreted to apply only to disputes regarding the interpretation and performance of the agreement.” (*Id.*, at 1052.) The court, in *Ramos*, found that the arbitration provision applied to the parties’ dispute because the claims and the agreement related to the plaintiff’s compensation, which fell within the broad scope of the arbitration

provision. (*Id.*, at 1054.)

Defendant also cites *Khalatian v. Prime Time Shuttle Inc.* (2015) 237 Cal.App.4th 651, which also involved an issue of extracontractual disputes relating to independent contractor classification. The court found that the arbitration provision that fell under the FAA and included any claim “arising out of or relating to this Agreement” was a broad provision that encompassed “plaintiff’s claims that the Labor Code governs his compensation, and not the compensation terms of his Agreement with defendants.” (*Id.*, at 659-660.)

Analysis

Here, Plaintiff does not dispute the authenticity or existence of the Agreement or the arbitration provision. Plaintiff argues that her claims do not fall within the scope of the arbitration provision. As a secondary argument, she contends that the arbitration terms are unconscionable and not enforceable.

In review of the threshold question, whether the parties’ dispute falls within the scope of that agreement, the court notes the difference between the language in the Agreement at issue and that in the cases discussed in the moving and Opposition papers and referenced above.

Here, the Agreement states that the parties agree to arbitrate “[a]ny disputes that arise between the parties with respect to the performance of this contract.” This language is narrower than the terms that were at issue in *Performance Team* (“interpretation of this contract or the performance of any obligation hereunder”), *Ramos* (“any dispute or controversy arising under or related to” the agreement), or *Khalatian* (“arising out of or relating to this agreement”). The terms of the Agreement also are not similar to the language at issue in *Elijah Juan* (“application or interpretation of the parties’ contracts”).

The court in *Performance Team* relied upon the inclusion of the term “interpretation” to find that arbitration provision was broad and that the controversy relating to independent contractor classification was subject to arbitration. The court noted that, “an analysis of the individual respondents’ status as employees or independent contractors will require an interpretation of the agreements’ terms (among other evidence) to decide if the terms accurately reflect the parties’ working relationship.” (*Id.* at 1246.) The court cited the same terms, “interpretation” and “performance,” in *AT&T Technologies* to support its finding that the arbitration agreement was broad. The court also held that “an analysis of the individual respondents’ status as employees or independent contractors will require an interpretation of the agreements’ terms.” (*Performance Team*, *supra*, 241 Cal.App.4th at 1246.)

Here, Defendant contends that the arbitration provision should be interpreted under the FAA so as to encompass statutory claims. (*Khalatian*, *supra*, 237 Cal.App.4th at 660, holding “the high court has established that statutory claims are arbitrable when the parties’ contract involves interstate commerce and is therefore governed by the FAA.”) However, even under federal law, the court cannot compel the parties to arbitrate a claim they did not agree to arbitrate.

The language of the arbitration provision includes only “performance” of the Agreement. The

arbitration provision does not include “interpretation” of the contract, or disputes “arising out of,” or “relating to” the Agreement. The language specifically refers to “disputes ... with respect to performance of the contract.” Defendant cites no precedent that holds that the term “with respect to performance of the contract” is sufficient to encompass questions of statutory interpretation and independent contractor classification under federal law.

The Court has considered the scope of work in both the April 12, 2019, and May 6, 2019, agreements. While the Renewed Agreement has a more expansive scope of work, the language does not show that it covers the claims alleged in this case. Here, Plaintiff’s claims arise from rights as an alleged employee and those claims are distinct from disputes with respect to contract performance. For example, “[m]any Labor Code claims are rooted in the employment relationship but arise independently of the terms of the plaintiff’s employment contract.” (*Soltero v. Precise Distribution, Inc.* (2024) 102 Cal.App.5th 887, 896, fn. 5.) The alleged “Labor Code claims do not arise out of the contract but instead are distinct from rights under the Agreements.” (*Elijahjuan, supra*, 210 Cal.App.4th 15, 24.) Similarly, FEHA claims are different than a claim regarding performance of a contract.

For the reasons discussed herein, Defendant has not shown that performance under the Agreement is at issue in this case or that the parties otherwise agreed to arbitrate matters concerning interpretation of the Agreement or agreed to arbitrate claims relating to any work performed by Plaintiff for Defendant.

Accordingly, the Motion is denied.

13. 9:00 AM CASE NUMBER: C25-01992

CASE NAME: JUSTIN WANG VS. TESLA, INC

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: TESLA, INC

TENTATIVE RULING:

Appearance required to address parties intended stipulation to arbitration.

14. 9:00 AM CASE NUMBER: C25-02273

CASE NAME: LINDA WILLIAMS VS. DOES 1-50

***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS**

FILED BY: TENET HEALTHCARE CORPORATION

TENTATIVE RULING:

The unopposed motion by defendant Tenet Healthcare Corporation to quash the service of summons is granted for the reasons stated in the motion and supporting documents.